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TERMED

U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:12-cv-02735-RPM

Bauman v. Ensminger, et al
Assigned to: Judge Richard P. Matsch
Cause: 42:1983 Civil Rights Act

Date Filed: 10/15/2012
Date Terminated: 05/22/2015
Jury Demand: Both
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff**Paul Bauman**

represented by **Darren M. Jankord**
Killmer Lane, LLP
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ATTORNEY TO BE NOTICED

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TERMINATED: 04/03/2014

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Email: dlane@killmerlane.com
ATTORNEY TO BE NOTICED

V.

Defendant

Teller County, Colorado
TERMINATED: 01/24/2013

represented by **Eric Michael Ziporin**
SGR, LLC
3900 East Mexico Avenue
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Denver, CO 80210
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Fax: 303-320-0210
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Leslie L. Schluter
Dagner Schluter Werber LLC
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Suite 1401
Greenwood Village, CO 80111
720-438-1969
Email: lschluter@lawincolorado.com
ATTORNEY TO BE NOTICED

Defendant

City of Cripple Creek, Colorado, The
TERMINATED: 03/18/2014

represented by **Eric Michael Ziporin**
(See above for address)

Jennifer Fawn Kemp
Colorado Department of Law
Ralph L. Carr Colorado Judicial Center
1300 Broadway
Denver, CO 80203
720-508-6644
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Defendant

Mike Ensminger
Teller County Sheriff, in his official capacity

represented by **Eric Michael Ziporin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Kurt Allan Kropp
Kurt A. Kropp, Attorney at Law
718 South Logan Street
Denver, CO 80209
512-762-8750
Email: kurtakropp@gmail.com
TERMINATED: 11/20/2014

Leslie L. Schluter

(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Mike (I) Ensminger
in his individual capacity

represented by **Eric Michael Ziporin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Kurt Allan Kropp
(See above for address)
TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Stan Bishop
Teller County Undersheriff, in his official capacity

represented by **Eric Michael Ziporin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Kurt Allan Kropp
(See above for address)
TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Stan (I) Bishop
in his individual capacity

represented by **Eric Michael Ziporin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Kurt Allan Kropp
(See above for address)
TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Josh Weatherill
*Teller County Sheriff's Office Deputy and
Member of Teller County Emergency
Response Team in his official capacity*

represented by **Eric Michael Ziporin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Kurt Allan Kropp
(See above for address)

TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Josh (I) Weatherill
in his individual capacity

represented by **Eric Michael Ziporin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Kurt Allan Kropp
(See above for address)
TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Nick Hartbauer
Teller County Sheriff's Office Deputy and
Member of Teller County Emergency
Response Team, in his official capacity

represented by **Eric Michael Ziporin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Kurt Allan Kropp
(See above for address)
TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Nick (I) Hartbauer
in his individual capacity

represented by **Eric Michael Ziporin**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Kurt Allan Kropp
(See above for address)
TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Jesse Baker
Tactical Medic of the Teller County
Emergency Response Team in his official
capacity

represented by **Kurt Allan Kropp**
(See above for address)
TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Jesse (I) Baker
in his individual capacity

represented by **Kurt Allan Kropp**
(See above for address)
TERMINATED: 11/20/2014

Leslie L. Schluter
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Gary Hamilton
*Former Teller County Chief of Police in his
official capacity*
TERMINATED: 03/08/2013

represented by **Eric Michael Ziporin**
(See above for address)
ATTORNEY TO BE NOTICED

Jennifer Fawn Kemp
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

Gary (I) Hamilton
in his individual capacity
TERMINATED: 03/08/2013

represented by **Eric Michael Ziporin**
(See above for address)
ATTORNEY TO BE NOTICED

Jennifer Fawn Kemp
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

April Peterson
*Cripple Creek Chief of Police in her official
capacity*
TERMINATED: 03/18/2014

represented by **Eric Michael Ziporin**
(See above for address)
ATTORNEY TO BE NOTICED

Jennifer Fawn Kemp
(See above for address)
ATTORNEY TO BE NOTICED

Defendant

April (I) Peterson
in her individual capacity
TERMINATED: 03/18/2014

represented by **Eric Michael Ziporin**
(See above for address)

Jennifer Fawn Kemp
(See above for address)

Date Filed	#	Docket Text
10/15/2012	<u>1</u>	COMPLAINT against April Peterson, Cripple Creek Chief of Police, in her individual and official capacity, Gary Hamilton, Former Teller County Chief of Police, in his individual and official capacity, Jesse Baker, Tactical Medic of the Teller County Emergency Response Team, in his individual and official capacity, Josh Weatherill, Teller

		County Sheriff's Office Deputy and Member of Teller County Emergency Response Team, in his individual and official capacity, Mike Ensminger, Teller County Sheriff, in his individual and official capacity, Nick Hartbauer, Teller County Sheriff's Office Deputy and Member of the Teller County Emergency Response Team, in his individual and official capacity, Stan Bishop, Teller County Undersheriff, in his individual and official capacity, Teller County, Colorado, The City of Cripple Creek, Colorado (Filing fee \$ 350, Receipt Number 1082-3063328), filed by Paul Bauman. (Attachments: # 1 Civil Cover Sheet, # 2 Summons Teller County, Colorado Summons, # 3 Summons The City of Cripple Creek, Colorado Summons, # 4 Summons Mike Ensminger Summons, # 5 Summons Stan Bishop Summons, # 6 Summons Josh Weatherill Summons, # 7 Summons Nick Hartbauer Summons, # 8 Summons Jesse Baker Summons, # 9 Summons Gary Hamilton Summons, # 10 Summons April Peterson Summons)(Lane, David) (Entered: 10/15/2012)
10/15/2012	2	Case assigned to Judge Richard P. Matsch and drawn to Magistrate Judge Boyd N. Boland. Text Only Entry (dbera,) (Entered: 10/15/2012)
10/15/2012	3	SUMMONS issued by Clerk. Magistrate Judge Consent Form attached. (Attachments: # 1 Summons, # 2 Summons, # 3 Summons, # 4 Summons, # 5 Summons, # 6 Summons, # 7 Summons, # 8 Summons, # 9 Magistrate Judge Consent Form) (dbera,) (Entered: 10/15/2012)
10/26/2012	4	NOTICE of Entry of Appearance by Eric Michael Ziporin on behalf of City of Cripple Creek, Colorado, The, Gary Hamilton, Gary (I) Hamilton, April Peterson, April (I) Peterson (Ziporin, Eric) (Entered: 10/26/2012)
10/26/2012	5	NOTICE of Entry of Appearance by Jennifer Fawn Kemp on behalf of City of Cripple Creek, Colorado, The, Gary Hamilton, Gary (I) Hamilton, April Peterson, April (I) Peterson (Kemp, Jennifer) (Entered: 10/26/2012)
11/06/2012	6	WAIVER OF SERVICE Returned Executed by Paul Bauman. Teller County, Colorado waiver sent on 10/22/2012, answer due 12/21/2012. (Lane, David) (Entered: 11/06/2012)
11/06/2012	7	WAIVER OF SERVICE Returned Executed by Paul Bauman. Mike Ensminger waiver sent on 10/22/2012, answer due 12/21/2012; Mike (I) Ensminger waiver sent on 10/22/2012, answer due 12/21/2012. (Lane, David) (Entered: 11/06/2012)
11/06/2012	8	WAIVER OF SERVICE Returned Executed by Paul Bauman. Stan Bishop waiver sent on 10/22/2012, answer due 12/21/2012; Stan (I) Bishop waiver sent on 10/22/2012, answer due 12/21/2012. (Lane, David) (Entered: 11/06/2012)
11/06/2012	9	WAIVER OF SERVICE Returned Executed by Paul Bauman. Josh Weatherill waiver sent on 10/22/2012, answer due 12/21/2012; Josh (I) Weatherill waiver sent on 10/22/2012, answer due 12/21/2012. (Lane, David) (Entered: 11/06/2012)
11/06/2012	10	WAIVER OF SERVICE Returned Executed by Paul Bauman. Nick Hartbauer waiver sent on 10/22/2012, answer due 12/21/2012; Nick (I) Hartbauer waiver sent on 10/22/2012, answer due 12/21/2012. (Lane, David) (Entered: 11/06/2012)
11/06/2012	11	WAIVER OF SERVICE Returned Executed by City of Cripple Creek, Colorado, The. City of Cripple Creek, Colorado, The waiver sent on 10/22/2012, answer due 12/21/2012. (Lane, David) (Entered: 11/06/2012)
11/06/2012	12	WAIVER OF SERVICE Returned Executed by Paul Bauman. April Peterson waiver sent on 10/22/2012, answer due 12/21/2012; April (I) Peterson waiver sent on 10/22/2012, answer due 12/21/2012. (Lane, David) (Entered: 11/06/2012)
11/06/2012	13	WAIVER OF SERVICE Returned Executed by Paul Bauman. Gary Hamilton waiver sent on 10/22/2012, answer due 12/21/2012; Gary (I) Hamilton waiver sent on 10/22/2012,

		answer due 12/21/2012. (Lane, David) (Entered: 11/06/2012)
12/17/2012	14	ANSWER to 1 Complaint,,,,, by City of Cripple Creek, Colorado, The, Gary Hamilton, April Peterson.(Kemp, Jennifer) (Entered: 12/17/2012)
12/17/2012	15	MOTION to Dismiss " <i>Teller County</i> " by Defendant Teller County, Colorado. (Schluter, Leslie) (Entered: 12/17/2012)
12/17/2012	16	ANSWER to 1 Complaint,,,,, by Stan Bishop, Stan (I) Bishop, Mike Ensminger, Mike (I) Ensminger, Nick Hartbauer, Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Schluter, Leslie) (Entered: 12/17/2012)
12/18/2012	17	NOTICE of Entry of Appearance <i>Tiffany Drahota</i> by Tiffany Jo Drahota on behalf of All Plaintiffs (Drahota, Tiffany) (Entered: 12/18/2012)
12/21/2012	18	NOTICE of Entry of Appearance <i>Darren M. Jankord</i> by Darren M. Jankord on behalf of All Plaintiffs (Jankord, Darren) (Entered: 12/21/2012)
01/10/2013	19	REPLY to Response to 15 MOTION to Dismiss " <i>Teller County</i> " filed by Plaintiff Paul Bauman. (Lane, David) (Entered: 01/10/2013)
01/10/2013	20	RESPONSE to 15 MOTION to Dismiss " <i>Teller County</i> " filed by Plaintiff Paul Bauman. (Lane, David) (Entered: 01/10/2013)
01/15/2013	21	SUMMONS Returned Executed by Paul Bauman. Jesse Baker served on 1/9/2013, answer due 1/30/2013; Jesse (I) Baker served on 1/9/2013, answer due 1/30/2013. (Lane, David) (Entered: 01/15/2013)
01/23/2013	22	REPLY to Response to 15 MOTION to Dismiss " <i>Teller County</i> " filed by Defendant Teller County, Colorado. (Schluter, Leslie) (Entered: 01/23/2013)
01/24/2013	23	ORDER DISMISSING TELLER COUNTY: Teller County is dismissed as a defendant in this civil action re 15 , by Judge Richard P. Matsch on 1/24/2013.(rpmcd) (Entered: 01/24/2013)
01/24/2013	24	ORDER Setting Scheduling Conference for 3/7/2013 at 10:00 AM in Conference Room, proposed order (original only) on paper, shall be submitted directly to chambers by 4:00 p.m. on February 28, 2013, lead counsel present in person and no parties permitted, by Judge Richard P. Matsch on 1/24/2013. (rpmcd) (Entered: 01/24/2013)
01/30/2013	25	Jesse Baker's ANSWER re 16 to 1 Complaint,,,,, by Jesse Baker, Jesse (I) Baker. (Schluter, Leslie) Modified on 1/30/2013 (rpmcd). (Entered: 01/30/2013)
03/07/2013	26	SCHEDULING ORDER: Discovery due by 4/19/2013 and Dispositive Motions due by 9/19/2013, by Judge Richard P. Matsch on 3/7/2013. (rpmcd) (Entered: 03/07/2013)
03/07/2013	27	Courtroom Minutes for Scheduling Conference held on 3/7/2013 before Judge Richard P. Matsch. FTR: K. Terasaki. (rpmcd) (Entered: 03/07/2013)
03/07/2013	28	Unopposed MOTION to Dismiss Party <i>Gary Hamilton</i> by Plaintiff Paul Bauman. (Attachments: # 1 Proposed Order (PDF Only))(Lane, David) (Entered: 03/07/2013)
03/08/2013	29	ORDER Granting 28 Motion to Dismiss Party: all claims against Defendant Gary Hamilton in his individual and official capacities are dismissed, each party to bear their own costs and attorneys' fees, by Judge Richard P. Matsch on 3/8/2013.(rpmcd) (Entered: 03/08/2013)
04/10/2013	30	STIPULATION for Extension of Time <i>RE: Teller County Sheriff's Office Defendants' Responses to Plaintiff's Discovery Requests</i> by Defendants Jesse Baker, Jesse (I) Baker, Stan Bishop, Stan (I) Bishop, Mike Ensminger, Mike (I) Ensminger, Nick Hartbauer,

		Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Schluter, Leslie) (Entered: 04/10/2013)
04/18/2013	31	Unopposed MOTION for Extension of Time to <i>Serve Discovery Responses re: Plaintiff and Sheriff's Office Defendants</i> by Defendants Jesse Baker, Jesse (I) Baker, Stan Bishop, Stan (I) Bishop, Mike Ensminger, Mike (I) Ensminger, Nick Hartbauer, Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Attachments: # 1 Proposed Order (PDF Only))(Kropp, Kurt) (Entered: 04/18/2013)
04/19/2013	32	ORDER Granting 31 Motion for Extension of Time: deadline for plaintiff and Sheriff's Office defendants' discovery responses is extended to and including Wednesday, April 24, 2013, by Judge Richard P. Matsch on 4/19/2013.(rpmcd) (Entered: 04/19/2013)
04/23/2013	33	Unopposed MOTION for Protective Order by Defendants City of Cripple Creek, Colorado, The, April Peterson. (Attachments: # 1 Proposed Order (PDF Only) Stipulation and Protective Order)(Kemp, Jennifer) (Entered: 04/23/2013)
04/24/2013	34	Stipulation and PROTECTIVE ORDER re 33 , by Judge Richard P. Matsch on 4/24/2013. (rpmcd) (Entered: 04/24/2013)
07/15/2013	35	Unopposed MOTION to Amend/Correct/Modify 26 Scheduling Order by Defendants City of Cripple Creek, Colorado, The, April Peterson. (Kemp, Jennifer) (Entered: 07/15/2013)
07/16/2013	36	ORDER Granting 35 Motion to Amend 26 SCHEDULING ORDER: Discovery due by 12/4/2013 and Dispositive Motions due by 1/6/2014 (see Order for other deadlines), by Judge Richard P. Matsch on 7/16/2013.(rpmcd) (Entered: 07/16/2013)
09/30/2013	37	Unopposed MOTION for Extension of Time to <i>Disclose Medical Retained Contradicting Experts</i> by Defendants Jesse Baker, Jesse (I) Baker, Stan Bishop, Stan (I) Bishop, Mike Ensminger, Mike (I) Ensminger, Nick Hartbauer, Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Attachments: # 1 Exhibit A, # 2 Proposed Order (PDF Only)) (Schluter, Leslie) (Entered: 09/30/2013)
10/01/2013	38	ORDER Granting 37 Motion for Extension of Time : defendants shall have a 30-day extension, to and including October 30, 2013, for the disclosure of medical retained contradicting experts, by Judge Richard P. Matsch on 10/1/2013.(rpmcd) (Entered: 10/01/2013)
10/11/2013	39	Stipulated MOTION for Hearing/Conference <i>Status Conference</i> by Plaintiff Paul Bauman. (Attachments: # 1 Exhibit A)(Lane, David) (Entered: 10/11/2013)
10/15/2013	40	Minute ORDER Granting 39 Motion and Setting Status Conference for 10/21/2013 at 03:30 PM in Conference Room, by Judge Richard P. Matsch on 10/15/2013.(rpmcd) (Entered: 10/15/2013)
10/21/2013	41	Courtroom Minutes for Status Conference held on 10/21/2013 before Judge Richard P. Matsch. ORDERED: Discovery deadlines are suspended until further determination by Court and counsel. FTR: K. Terasaki. (rpmcd) (Entered: 10/22/2013)
11/08/2013	42	MOTION for Summary Judgment <i>and Brief in Support</i> by Defendants City of Cripple Creek, Colorado, The, April Peterson, April (I) Peterson. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H)(Kemp, Jennifer) (Entered: 11/08/2013)
12/03/2013	43	Unopposed MOTION for Extension of Time to File Response/Reply as to 42 MOTION for Summary Judgment <i>and Brief in Support</i> by Plaintiff Paul Bauman. (Attachments: # 1 Proposed Order (PDF Only))(Lane, David) (Entered: 12/03/2013)

12/04/2013	44	ORDER Granting 43 Motion for Extension of Time: Plaintiff shall have a 12-day extension, to and including December 24, 2013, to respond to the Cripple Creek Defendants' Combined Motion for Summary Judgment re 42 , by Judge Richard P. Matsch on 12/4/2013.(rpmcd) (Entered: 12/04/2013)
12/19/2013	45	Unopposed MOTION for Extension of Time to File Response/Reply as to 42 MOTION for Summary Judgment <i>and Brief in Support</i> by Plaintiff Paul Bauman. (Attachments: # 1 Proposed Order (PDF Only))(Drahota, Tiffany) (Entered: 12/19/2013)
12/19/2013	46	ORDER Granting Plaintiff's 45 Motion for Extension of Time re 42 : to and including December 30, 2013, to respond to the Cripple Creek Defendants' Motion for Summary Judgment, by Judge Richard P. Matsch on 12/19/2013.(rpmcd) (Entered: 12/19/2013)
12/30/2013	47	RESPONSE to 42 MOTION for Summary Judgment <i>and Brief in Support</i> filed by Plaintiff Paul Bauman. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E, # 6 Exhibit F, # 7 Exhibit G, # 8 Exhibit H, # 9 Exhibit I, # 10 Exhibit J, # 11 Exhibit K, # 12 Exhibit L)(Drahota, Tiffany) (Entered: 12/30/2013)
12/31/2013	48	NOTICE re 47 Response to Motion, <i>Conventionally Submitted Exhibit</i> by Plaintiff Paul Bauman (Drahota, Tiffany) (Entered: 12/31/2013)
01/06/2014	49	Conventionally Submitted Material : Exhibit "K" to Plaintiff's Response to Motion, 47 by Plaintiff Paul Bauman. (1 CD-R Disc placed in an envelope and put in the Clerk's Office) Material placed in the oversized area A-7-3 of the Clerk's Office. Text Only Entry (ervsl,) (Entered: 01/06/2014)
01/07/2014	50	Unopposed MOTION for Extension of Time to File Response/Reply as to 42 MOTION for Summary Judgment <i>and Brief in Support</i> by Defendants City of Cripple Creek, Colorado, The, April Peterson, April (I) Peterson. (Kemp, Jennifer) (Entered: 01/07/2014)
01/07/2014	51	ORDER Granting Cripple Creek Defendants' 50 Motion for Extension of Time to File Reply re 42 : to and including January 20, 2014, by Judge Richard P. Matsch on 1/7/2014. (rpmcd) (Entered: 01/07/2014)
01/20/2014	52	REPLY to Response to 42 MOTION for Summary Judgment <i>and Brief in Support</i> filed by Defendants City of Cripple Creek, Colorado, The, April Peterson, April (I) Peterson. (Attachments: # 1 Exhibit I, # 2 Exhibit J, # 3 Exhibit K, # 4 Exhibit L, # 5 Exhibit M) (Kemp, Jennifer) (Entered: 01/20/2014)
02/25/2014	53	MINUTE ORDER Setting Hearing on Motion 42 MOTION for Summary Judgment and Brief in Support : Motion Hearing set for 3/14/2014 11:00 AM in Courtroom A before Judge Richard P. Matsch, by Judge Richard P. Matsch on 2/25/2014. (evana,) (Entered: 02/25/2014)
02/28/2014	54	Unopposed MOTION for Order to <i>for Status Conference</i> by Plaintiff Paul Bauman. (Drahota, Tiffany) (Entered: 02/28/2014)
03/14/2014	55	Courtroom Minutes for Motions Hearing held on 3/14/2014 before Judge Richard P. Matsch. ORDERED: Stay Order on discovery is vacated. Plaintiff permitted 45 days (April 28, 2014) to obtain medical experts. Cripple Creek Defendants' Motion for Summary Judgment 42 , is taken under advisement. Plaintiff's Unopposed Motion for Status Conference 54 , is moot as issues addressed during this hearing. FTR: K. Terasaki. (rpmcd) (Entered: 03/14/2014)
03/18/2014	56	MEMORANDUM OPINION AND ORDER: the Cripple Creek Defendants' Combined Motion for Summary Judgment 42 is granted. Defendant April Peterson and Defendant City of Cripple Creek shall be dismissed from this civil action, by Judge Richard P. Matsch on 3/18/2014. (rpmcd) (Entered: 03/18/2014)

03/18/2014	57	JUDGMENT by Clerk re 56 Memorandum Opinion and Order: this civil action is dismissed as to Defendant April Peterson and Defendant City of Cripple Creek. Defendants are awarded costs upon the filing of a bill of costs within 14 days, by Deputy Clerk on 3/18/2014. (rpmcd) (Entered: 03/18/2014)
04/01/2014	58	Proposed Bill of Costs by Defendants City of Cripple Creek, Colorado, The, April Peterson, April (I) Peterson. (Attachments: # 1 Affidavit of Eric M. Ziporin)(Ziporin, Eric) (Entered: 04/01/2014)
04/03/2014	59	Unopposed MOTION to Withdraw as Attorney <i>Tiffany Drahota</i> by Plaintiff Paul Bauman. (Attachments: # 1 Proposed Order (PDF Only))(Drahota, Tiffany) (Entered: 04/03/2014)
04/03/2014	60	ORDER Granting 59 Motion to Withdraw as Attorney. Attorney Tiffany Jo Drahota is withdrawn and NEF's terminated, by Judge Richard P. Matsch on 4/3/2014. Text Only Entry(jsmit) (Entered: 04/03/2014)
04/10/2014	61	Unopposed MOTION to Withdraw Document re 58 Proposed Bill of Costs by Defendants City of Cripple Creek, Colorado, The, April Peterson, April (I) Peterson. (Kemp, Jennifer) (Entered: 04/10/2014)
04/10/2014	62	ORDER Granting 61 Motion to Withdraw Document 58 Proposed Bill of Costs, by Judge Richard P. Matsch on 4/10/2014 (Text Only Entry).(jsmit) (Entered: 04/10/2014)
04/15/2014	63	NOTICE of Entry of Appearance <i>Michael P. Fairhurst</i> by Michael Paul Fairhurst on behalf of All Plaintiffs Attorney Michael Paul Fairhurst added to party Paul Bauman(pty:pla) (Fairhurst, Michael) (Entered: 04/15/2014)
04/21/2014	64	Joint MOTION to Amend/Correct/Modify <i>Deadline to Designate Medical Experts</i> by Plaintiff Paul Bauman. (Lane, David) (Entered: 04/21/2014)
04/22/2014	65	ORDER Granting 64 Motion to Amend re 26 : The deadline for Plaintiff to obtain and disclose his medical experts is extended to May 26, 2014, and the deadline for Defendants to obtain and disclose their contradicting medical experts is extended to August 7, 2014, by Judge Richard P. Matsch on 4/22/2014.(jsmit) (Entered: 04/22/2014)
04/23/2014	66	NOTICE <i>Requesting Electronic Service be Terminated</i> by Defendants City of Cripple Creek, Colorado, The, April Peterson, April (I) Peterson (Kemp, Jennifer) Modified to note attys.' NEF terminated only on two dismissed parties pursuant to request on 4/23/2014 (jsmit). (Entered: 04/23/2014)
05/22/2014	67	Unopposed MOTION to Amend/Correct/Modify 36 Order on Motion to Amend/Correct/Modify <i>to Disclose Medical Expert</i> by Plaintiff Paul Bauman. (Lane, David) (Entered: 05/22/2014)
05/23/2014	68	ORDER Granting 67 Motion for One-Day Extension: The deadline for Plaintiff to obtain and disclose his medical experts is extended to May 27, 2014, and the deadline for Defendants to obtain and disclose their contradicting medical experts is extended to August 8, 2014, by Judge Richard P. Matsch on 5/23/2014.(jsmit) (Entered: 05/23/2014)
08/14/2014	69	ORDER Setting Pretrial Conference set for 10/15/2014 10:30 AM in Conference Room, Proposed Pretrial Order due by 10/9/2014 in paper form directly to chambers by 4:00 p.m., and lead counsel present in person, by Judge Richard P. Matsch on 8/14/2014. (jsmit) (Entered: 08/14/2014)
10/15/2014	70	Final PRETRIAL ORDER, by Judge Richard P. Matsch on 10/15/2015. (jsmit) (Entered: 10/15/2014)

10/15/2014	71	Courtroom Minutes for Scheduling Conference held on 10/15/2014 before Judge Richard P. Matsch. ORDERED: Deadline to exchange lists of exhibits April 17, 2015. One week jury trial set May 18, 2015. Trial preparation conference set May 8, 2015 at 2:00 p.m. Pretrial Order signed. FTR: K. Terasaki. (jsmit) (Entered: 10/15/2014)
10/15/2014	72	ORDER Setting Jury Trial for 5/18/2015 at 08:30 AM in Courtroom A and Trial Preparation Conference for 5/8/2015 at 02:00 PM in Conference Room, by Judge Richard P. Matsch on 10/15/2014. (jsmit) (Entered: 10/15/2014)
11/20/2014	73	MOTION to Withdraw as Attorney <i>re: Associate Kurt A. Kropp</i> by Defendants Jesse Baker, Jesse (I) Baker, Stan Bishop, Stan (I) Bishop, Mike Ensminger, Mike (I) Ensminger, Nick Hartbauer, Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Schluter, Leslie) (Entered: 11/20/2014)
11/20/2014	74	ORDER Granting 73 Motion to Withdraw as Attorney. Attorney Kurt Allan Kropp is withdrawn and NEF's terminated, by Judge Richard P. Matsch on 11/20/14. Text Only Entry (ktera) (Entered: 11/20/2014)
12/31/2014	75	NOTICE of Change of Address/Contact Information <i>Effective January 1, 2015</i> by Leslie Lynn Schluter (Schluter, Leslie) (Entered: 12/31/2014)
05/01/2015	76	OBJECTIONS to <i>Defendants Trial Exhibits</i> by Plaintiff Paul Bauman. (Fairhurst, Michael) (Entered: 05/01/2015)
05/04/2015	77	OBJECTIONS to <i>Plaintiff's Trial Exhibits</i> by Defendants Jesse Baker, Jesse (I) Baker, Stan Bishop, Stan (I) Bishop, Mike Ensminger, Mike (I) Ensminger, Nick Hartbauer, Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Schluter, Leslie) (Entered: 05/04/2015)
05/08/2015	78	COURTROOM MINUTES for Trial Preparation Conference held before Judge Richard P. Matsch on 5/8/2015. Dr. Entin may not testify as to personality disorders from a review of Plaintiff's medical records. Ms. Schluter may provide an offer of proof at trial. On or before 4:00 p.m. on May 12, 2015, counsel shall submit to the Court in paper format delivered to chambers final witness and exhibit lists, proposed voir dire, and proposed jury instructions. FTR: K. Terasaki. (ebuch) (Entered: 05/08/2015)
05/15/2015	79	MOTION for Reconsideration <i>Sua Sponte Order Concerning Dr. Entin or Alternatively, Preclude Dr. Kleiner</i> by Defendants Jesse Baker, Jesse (I) Baker, Stan Bishop, Stan (I) Bishop, Mike Ensminger, Mike (I) Ensminger, Nick Hartbauer, Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Attachments: # 1 Level 1 Restricted Document - Exhibit A, # 2 Level 1 Restricted Document - Exhibit B, # 3 Proposed Order (PDF Only)) (Schluter, Leslie) Modified on 5/15/2015 to add restriction level to exhibits A and B pursuant to 80 Order (athom,). (Entered: 05/15/2015)
05/15/2015	80	ORDER EXCLUDING OPINIONS Dr. Jeffrey Bruce Kleiner, M.D. and Dr. Howard J. Entin, M.D. opinions are excluded, exhibits A and B to the defendants' Motion to Reconsider 79 are restricted under level 1, by Judge Richard P. Matsch on 5/15/15. (ktera) (Entered: 05/15/2015)
05/18/2015	81	COURTROOM MINUTES for proceedings held before Judge Richard P. Matsch: Jury Trial - Day 1 held on 5/18/2015. Trial continued. FTR: Kathy Terasaki. (Attachments: # 1 Redacted Juror Strike Sheet) (cpear) Modified on 5/20/2015 to correct text (cpear). (Entered: 05/19/2015)
05/18/2015	82	AMENDED COURTROOM MINUTES for proceedings held before Judge Richard P. Matsch: Docket entry 81 Courtroom Minutes - Jury Trial - Day 1 and Attachment #1 are amended to correct a juror number only. FTR: Kathy Terasaki. (Attachments: # 1

		Amended Redacted Juror Strike Sheet) (cpear) Modified on 5/19/2015 to correct text (cpear). Modified on 5/20/2015 to correct text (cpear). (Entered: 05/19/2015)
05/19/2015	83	COURTROOM MINUTES for proceedings held before Judge Richard P. Matsch: Jury Trial - Day 2 held on 5/19/2015. Trial continued. FTR: Kathy Terasaki. (cpear) Modified on 5/20/2015 to correct text (cpear). (Entered: 05/20/2015)
05/19/2015	84	AMENDED COURTROOM MINUTES for proceedings held before Judge Richard P. Matsch: Docket entry 83 Courtroom Minutes is amended only to correct the day of trial to Day 2. FTR: Kathy Terasaki. (cpear) (Entered: 05/21/2015)
05/20/2015	85	COURTROOM MINUTES for proceedings held before Judge Richard P. Matsch: Jury Trial - Day 3 held on 5/20/2015. Offer of Proof regarding expert reports are received and will be filed. Plaintiff's oral motion pursuant to Rule 50 is granted. Defendants' oral motion pursuant to Rule 50 is granted as to Defendant Ensminger and denied as to Defendant Bishop. Defendant Ensminger is dismissed. Trial continued. FTR: K. Terasaki. (cpear) (Entered: 05/22/2015)
05/20/2015	86	OFFER OF PROOF: Filed pursuant to 85 Courtroom Minutes Jury Trial - Day 3. (cpear) (Entered: 05/22/2015)
05/20/2015	87	RESTRICTED DOCUMENT - Level 1: Exhibit K to 86 Offer of Proof, filed pursuant to 85 Courtroom Minutes Jury Trial - Day 3. (cpear) (Entered: 05/22/2015)
05/20/2015	88	RESTRICTED DOCUMENT - Level 1: Expert reports, filed pursuant to 85 Courtroom Minutes Jury Trial - Day 3. (cpear) (Entered: 05/22/2015)
05/21/2015	89	COURTROOM MINUTES for proceedings held before Judge Richard P. Matsch: Jury Trial - Day 4 held on 5/21/2015. Trial continued. FTR: K.Terasaki. (cpear) (Entered: 05/22/2015)
05/22/2015	90	COURTROOM MINUTES for proceedings held before Judge Richard P. Matsch: Jury Trial - Day 5 completed on 5/22/2015. JURY VERDICT in favor of the plaintiff and against the defendants. Judgment shall enter accordingly. FTR: K. Terasaki. (Attachments: # 1 Clerk's working copy Defendants' Exhibit List, # 2 Clerk's working copy Plaintiff's Exhibit List, # 3 Combined witness list, # 4 Redacted Jury Note 5-21-15, # 5 Answer to Jury Note 5-21-15, # 6 Redacted Jury Note 5-22-15, # 7 Redacted Verdict) (cpear) (Entered: 05/22/2015)
05/22/2015	91	FINAL JUDGMENT in favor of the plaintiff Paul Bauman against the defendant Josh Weatherill, Nick Hartbauer, and Stan Bishop jointly and severally. Entered by the Clerk of the Court on 5/22/2015. (cpear) (Entered: 05/22/2015)
05/22/2015	92	AMENDED COURTROOM MINUTES for proceedings held before Judge Richard P. Matsch: Jury Trial - Day 5. Docket entry 90 Courtroom Minutes - Jury Trial Day 5 is amended to include the order that the plaintiff's motion for attorneys' fees and costs and pre-judgment interest, along with a bill of costs, shall be filed on or before 7/6/15. FTR: K. Terasaki. (cpear) (Entered: 05/26/2015)
06/01/2015	93	Partial TRANSCRIPT of Trial To Court - Day 2 held on May 19, 2015 before Judge Matsch. Pages: 1-18. Prepared by: Federal Reporting Service, Inc. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the

		Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Federal Reporting Service, Inc.,) (Entered: 06/01/2015)
06/01/2015	94	Partial TRANSCRIPT of Trial To Court - Day 3 held on May 20, 2015 before Judge Matsch. Pages: 1-29. Prepared by: Federal Reporting Service, Inc. NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (Federal Reporting Service, Inc.,) (Entered: 06/01/2015)
06/08/2015	95	NOTICE of Intent to Request Redaction by Leslie Lynn Schluter re 93 Transcript,, 94 Transcript,, (Schluter, Leslie) (Entered: 06/08/2015)
06/19/2015	96	Unopposed MOTION for Extension of Time to <i>File Post-Trial Motions</i> by Defendants Stan Bishop, Stan (I) Bishop, Nick Hartbauer, Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Attachments: # 1 Proposed Order (PDF Only))(Schluter, Leslie) (Entered: 06/19/2015)
06/19/2015	97	ORDER Granting 96 Unopposed Motion for Extension to File Post-Trial Motions. The deadline to file post-trial motions is extended to July 6, 2015, by Judge Richard P. Matsch on 6/19/15. (ktera) (Entered: 06/19/2015)
06/22/2015	98	Transcript Redaction Request re 93 Transcript,, by attorney Leslie Lynn Schluter. (Attachments: # 1 Proposed Order (PDF Only))(Schluter, Leslie) (Entered: 06/22/2015)
06/30/2015	99	Joint MOTION for Extension of Time to <i>Extend Post-Trial Deadlines</i> by Plaintiff Paul Bauman. (Attachments: # 1 Proposed Order (PDF Only))(Fairhurst, Michael) (Entered: 06/30/2015)
07/01/2015	100	ORDER Granting 99 Joint Motion for Extension on Deadlines to Submit Plaintiff's Petition for Attorneys' Fees and Post-Trial Motions. Plaintiff shall file his motion for attorneys' fees and prejudgment interest, including his bill of costs, on or before August 5, 2015, and Defendants shall file their post-trial motions on or before August 5, 2015, by Judge Richard P. Matsch on 7/1/15. (ktera) (Entered: 07/01/2015)
08/05/2015	101	STIPULATION <i>CONCERNING POST-TRIAL MATTERS</i> by Defendants Stan Bishop, Stan (I) Bishop, Nick Hartbauer, Nick (I) Hartbauer, Josh Weatherill, Josh (I) Weatherill. (Schluter, Leslie) (Entered: 08/05/2015)

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